

THE KING'S BENCH (FAMILY DIVISION)

_____ **Centre**

BETWEEN:

Petitioner/Applicant

- and -

Respondent

AFFIDAVIT OF _____

In support of an order authorizing a court official to request **financial** information for the **establishment or variation of a support order** pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada)

SWORN/AFFIRMED: _____

(name, address, e-mail, and telephone number of party filing)

THE KING'S BENCH (FAMILY DIVISION)
_____ **Centre**

BETWEEN:

Petitioner/Applicant

-and-

Respondent

AFFIDAVIT OF _____

I, _____, of the City/Town of _____, in
(Full name of affiant)
the Province of Manitoba,

SOLEMNLY SWEAR/AFFIRM THAT:

1. I am seeking to

☐ Establish a support order

☐ Vary the support provision set out in the order pronounced

_____ by _____
(specify date) *(specify Judge, Court, and province/territory/country)*

I have attached a copy of this order as Exhibit "A" to this affidavit.

2. I make this affidavit in support of an application under section 7 of the
Family Orders and Agreements Enforcement Assistance Act (Canada)

to request that the court make an order under section 10 of that Act to authorize an official of the court to apply for the release of information under section 12 of that Act for the above-mentioned purpose.

3. The application under section 7 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) is made for the following reasons:

a. _____ has not provided
(Name of the person to whom the requested information relates)

their financial information in the timeframe required,

- i) by an order or direction of a judge or associate judge; or
- ii) in the event of being noted in default

(Strike out paragraph (b) if not applicable)

b. Income information for the following person(s) is needed for the determination of a household's income in accordance with the applicable Child Support Guidelines:

(Name of the person to whom the requested information relates)

(Name of the person to whom the requested information relates)

(Name of the person to whom the requested information relates)

(Name of the person to whom the requested information relates)

(Strike out paragraph (c) if not applicable)

c. (i) _____ directly
(Name of the person to whom the requested information relates)

controls, within the meaning of subsection 256(5.1) of *the Income Tax Act*, R.C.S. 1985, c.1 (5th supp.) the following corporation(s):

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

(ii) Direct control of the corporation(s) listed in c(i) is established by

_____.

(Strike out paragraph (d) if not applicable)

d. (i) _____ indirectly
(Name of the person to whom the requested information relates)

controls, within the meaning of subsection 256(5.1) of *the Income Tax Act*, R.C.S. 1985, c.1 (5th supp.) the following corporation(s):

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

(Name and business number (if known) of the corporation)

(ii) Indirect control of the corporation(s) listed in d(i) is established by

_____.

4. The information to be requested under section 12 the *Family Orders and Agreements Enforcement Assistance Act* (Canada) relates to

(Name of the person to whom the requested information relates)

5. The information is necessary to (establish/vary) a support order.

6. The information will only be used for the purpose identified in this affidavit.

7. I make this affidavit in good faith.

SWORN (or AFFIRMED) before me)
in _____, Manitoba)
this ____ day of _____, _____.)
)

Signature of affiant

Deputy Registrar for King's Bench or
A Commissioner for Oaths in and for
The Province of Manitoba
My Commission Expires: _____